

# The Yoga Undertakings (Taking Over of Management) Act, 1977

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The Yoga Undertakings (Taking Over of Management) Act, 1977

UNION OF INDIA

India

The Yoga Undertakings (Taking Over of Management) Act, 1977

Act 21 of 1977

Published on 5 July 1977

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The Yoga Undertakings (Taking Over of Management) Act, 1977

No. 21 of 1977

1873.

[5th July, 1977.]

An Act to provide for the taking over of the management of the undertakings of the two Yoga Societies for a limited period in the public interest and in order to secure the proper management thereof and for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Twenty-eighth Year of the Republic of India as follows :--

Chapter I

Preliminary

1.

Short title and Commencement.

(1)

This Act may be called the Yoga Undertakings (Taking Over of Management) Act, 1977.

(2)

It shall be deemed to have come into force on the 24th day of May, 1977.

2.

Definitions.

- In this Act, unless the context otherwise requires,--

(a)

"Administrator" means the person or body of persons appointed as the Administrator under section 4;

(b)

"appointed day" means the 24th day of May, 1977;

(c)

"prescribed" means prescribed by rules made under this Act;

(d)

"Societies Registration Act" means the Societies Registration Act, 1860 (

21 of 1860

), as in force in the Union territory of Delhi;

(e)

"two Yoga Societies" means the--

(i)

Vishwayatan Yogashram, a society registered under the Societies Registration Act and having its registered office at B-36, Defence Colony, New Delhi, and

(ii)

Central Research Institute for Yoga, a society registered under the Societies Registration Act, and having its registered office at Yogashram, Ashok Road, New Delhi,

and the expression "Yoga Society" shall be construed as referring to one of the two Yoga Societies;

(f)

words and expressions used herein and not defined, but defined in the Societies Registration Act shall have the meanings, respectively, assigned to them in that Act.

Chapter II

Taking Over Of The Management Of The Undertakings Of The Two Yoga Societies

3.

Management of the undertakings of the two Yoga Societies.

(1)

On and from the appointed day, and for a period of two years thereafter, the management of the undertakings of the two Yoga Societies shall vest in the Central Government :

Provided that if the Central Government is of opinion that in order to secure the proper management of the undertakings of either, or both, of the Yoga Societies, it is expedient that such management should continue to vest in the Central Government after the expiry of the said period of two years, it may, from time to time, issue directions for the continuance of such management for such period, not exceeding one year at a time, as it may think fit; so, however, that the total period for which such management shall continue to vest in the Central Government shall not, in any case, exceed five years.

(2)

The undertaking of each of the two Yoga Societies shall be deemed to include all assets, rights, lease-holds, powers, authorities and privileges and all property, movable and immovable, including lands, buildings, works, workshops, projects, stores, instruments, machinery, aircraft, automobiles and other vehicles, cash balances, reserve funds, investments and book debts and all other rights and interests arising out of such property as were immediately before the appointed day in the ownership, possession, power or control of each of the two Yoga Societies, whether within or without India, and all books of account, registers, maps, plans and all other documents of whatever nature relating thereto.

(3)

Any contract, whether exercise or implied, or other arrangement, in so far as it relates to the management of the business and affairs of the undertakings of either, or both, or the Yoga Societies, and in force immediately before the appointed day, shall be deemed to have terminated on the appointed day.

(4)

All persons in charge of the management of either of the two Yoga Societies, including persons holding offices as directors, managers, members of the Governing Body or Board of Trustees or any other managerial personnel of either, or both, of the Yoga Societies immediately before the appointed day shall be deemed to have vacated their offices as such on the appointed day.

4.

Administrator of the two Societies Yoga.

(1)

The Central Government shall, as from the appointed day, appoint a person or a body of persons as the Administrator of the undertakings of the two Yoga Societies for the purpose of taking over the management thereof and the Administrator shall carry on the management of the undertakings of the two Yoga Societies for and on behalf of the Central Government.

(2)

The Central Government may issue such directions (including directions as to initiating, defending or continuing any legal proceedings before any court, tribunal or other authority) to the Administrator as to his powers and duties as that Government may deem desirable and the Administrator may apply to the Central Government at any time for instructions as to the manner in which he shall conduct the management of the undertakings of the two Yoga Societies or in relation to any matter arising in the course of such management.

(3)

Subject to the other provisions of this Act and the rules made thereunder and to the control of the Central Government, the Administrator shall be entitled, notwithstanding anything contained in the Societies Registration Act or in any other law for the time being in force, to exercise, in relation to the undertakings of the two Yoga Societies, the powers of the Governing Body, or, as the case may be, the Board of Trustees, of the respective Yoga Society, including the powers to dispose of any property or assets of such society, whether such powers are derived under any law for the time being in force or from the memorandum and rules and regulations of the concerned Yoga Society or from any other source.

(4)

Every person having possession, custody or control of any property forming part of any undertaking of either of the two Year Societies shall deliver forthwith such property to the Administrator or to any officer or other employee of the Central Government, as may be authorised by the Central Government in this behalf.

(5)

Any person who, on the appointed day, has in his possession or under his control any books, papers or other documents relating to any undertaking of either of the two Yoga Societies, including the minutes books containing the resolutions of the persons in charge of the management of the concerned Yoga Society before the appointed day, the current cheque books relating to the undertakings of the concerned Yoga Society, any letters, memoranda, notes or other communications between him and either of the two Yoga Societies shall, notwithstanding anything contained in any other law for the time being in force, be liable to account for the books, papers and other documents (including such minutes books, cheque books, letters, memoranda, notes or other communications) to the Administrator or to any such person (being an officer or officer employee of the Central Government) as may be authorised by the Central Government in this behalf.

(6)

Every person in charge of the management of the undertakings of either of the two Yoga Societies immediately before the appointed day shall, within ten days from that day or within such further period as the Central Government may allow in this behalf, furnish to the Administrator a complete inventory of all the properties and assets (including particulars of book debts and investments and belongings) forming part of the undertakings of the concerned Yoga Society immediately before the appointed day and of all the liabilities and obligations of the concerned Yoga Society, in relation to its undertakings, subsisting immediately before that day, and also of all agreements entered into by either, or both, of the Yoga Societies in relation to its or their undertakings and in force immediately before that day.

(7)

The Administrator shall receive from the funds of the two Yoga Societies such remuneration as the Central Government may fix.

5.

No right to compensation for premature termination of a contract.

- Notwithstanding anything contained in any law for the time being in force, no person in respect of whom any contract of management or other arrangement is terminated by reason of the provisions contained in sub-section (3) of section 3 or who ceases to hold any office by reason of the provisions contained in sub-section (4) of that section, shall be entitled to claim any compensation for the premature termination of the contract of management or other arrangement or for the loss of his office.

6.

Relinquishment of management of the two Yoga Societies.

(1)

Notwithstanding anything contained in sub-section (1) of section 3, if, at any time before the expiry of the period referred to in that sub-section, it appears to the Central Government that the purposes of the vesting of the management of the undertakings of either, or both, of the Yoga Societies in that Government have been fulfilled or that for any other reason it is not necessary that the management of the undertakings of either, or both, of the Yoga Societies should remain vested in that Government, it may, by order published in the Official Gazette, relinquish the management of the undertakings of either, or both, of the Yoga Societies with effect from such date as may be specified in the order.

(2)

On and from the date specified under sub-section (1), the management of the undertakings of the concerned Yoga Society shall vest in the Governing Body (by whatever name called) of the concerned Yoga Society and such management shall be carried on in accordance with the provisions in the Societies Registration Act, so, however, that the steps, if any, in relation to the management of the undertakings of the concerned Yoga Society may be taken after the publication of the order under sub-section (1).

7.

Application of Act 21 of 1960.

(1)

Notwithstanding anything contained in Societies Registration Act or in the memorandum and rules and regulations of either of the two Yoga Societies, but subject to the provisions of sub-section (2) of section 6, so long as the management of the undertakings of the two Yoga Societies remains vested in the Central Government, --

(a)

it shall not be lawful for the members of either of the two Yoga Societies or any other person to nominate or appoint any person to be a member of the Governing Body (by whatever name called) of either of the two Yoga Societies;

(b)

no resolution passed at any meeting of the members of either of the two Yoga Societies or at any meeting of the Governing Body (by whatever name called) of either of the two Yoga Societies, on or after the appointed day, shall be given effect to unless approved by the Central Government;

(c)

no proceeding for the dissolution of either of the two Yoga Societies or for their merger with any other society or for the appointment of a Receiver in respect of any undertaking thereof shall lie in any court except with the consent of the Central Government.

(2)

Subject to the provisions contained in sub-section (1) and subject to such other exceptions, restrictions and limitations, if any, as may be prescribed, the Societies Registration Act shall continue to apply to the concerned Yoga Society in the same manner as it applied thereto before the appointed day.

Chapter III

Miscellaneous

8.

Penalties.

- Any person who, --

(a)

having in his possession or custody or under his control any property forming part of any undertaking of either of the two Yoga Societies, wrongfully withholds such property from the Administrator or any person authorised under this Act, or

(b)

wrongfully obtains possession of any such property, or

(c)

wilfully retains, or fails to deliver, any property forming part of any of the undertakings of either of the two Yoga Societies or removes or destroys it, or

(d)

wilfully withholds or fails to account for any books, papers or other documents which may be in his possession or custody or under his control to the Administrator or any person authorised under this Act, or

(e)

fails, without any reasonable cause, to furnish information or particulars as provided in sub-section (6) of section 4.

shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to ten thousand rupees, or with both.

9.

Offences by companies.

(1)

Where an offence under this Act has been committed by a company, every person who at the time the offence was committed was in charge of, and was responsible to, the company, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly :

Provided that nothing contained in this sub-section shall render any such person liable to any punishment, if he proves that the offence was committed without his knowledge or that he had exercised all due diligence to prevent the commission of such offence.

(2)

Notwithstanding anything contained in sub-section (1), where any offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to, any neglect on the part of any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation. - For the purposes of this section, --

(a)

"company" means any body corporate and includes a firm or other association of individuals; and

(b)

"director", in relation to a firm, means a partner in the firm.

10.

Exclusion of period of operation of Act.

- In computing the period of limitation prescribed by any law for the time being in force for any suit or application against any person by either of the two Yoga Societies in respect of any matter arising out of any transaction in relation to their undertakings, the time during which this Act is in force shall be excluded.

11.

Act to have overriding effect.

- The provisions of this Act or any notification, order or rule made thereunder shall have effect notwithstanding anything inconsistent therewith contained in any law other than this Act or in any instrument having effect by virtue of any law other than this Act or in any decree or order of any court.

12.

Protection of action taken in good faith.

(1)

No suit, prosecution or other legal proceeding shall lie against the Administrator or any officer or other employee of the Central Government for anything which is in good faith done or intended to be done under this Act.

(2)

No suit or other legal proceeding shall lie against the Central Government or the Administrator or any of the officers or other employees of the Central Government for any damage caused or likely to be caused by anything which is in good faith done or intended to be done under this Act.

13.

Contracts in bad faith may be cancelled or varied.

(1)

If the Central Government is satisfied, after such inquiry as it may think fit, that any contract or agreement entered into at any time within one year immediately preceding the appointed day, between either of the two Yoga Societies and any other person, in so far as such contract or agreement relates to any undertaking of such Yoga Society, has been entered into in bad faith, or is detrimental to the interests of the concerned Yoga Society, it may make an order cancelling or varying (either unconditionally or subject to such conditions as it may think fit to impose) such contract or agreement and thereafter the contract or agreement shall have effect accordingly.

Provided that no contract or agreement shall be cancelled or varied except after giving to the parties to the contract or agreement a reasonable opportunity of being heard.

(2)

Any person aggrieved by an order under sub-section (1) may make an application to the High Court at Delhi for the variation or reversal of such order and thereupon such court may confirm, modify or reverse such order.

14.

Power to terminate contract of employment.

- If the Administrator is of opinion that any contract of employment entered into by either of the two Yoga Societies in relation to their undertakings, at any time before the appointed day, is unduly onerous, he may, by giving to the employee one month's notice in writing or the salary or wages for one month in lieu thereof, terminate such contract of employment.

15.

Power to make rules.

(1)

The Central Government may, by notification in the Official Gazette, make rules for carrying out the provisions of this Act.

(2)

Every rule made by the Central Government under this Act shall be laid, as soon as may be after it is made, before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

16.

Repeal and saving.

(1)

The Yoga Undertakings (Taking Over of Management) Ordinance, 1977 (8 of 1977.), is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the Ordinance so repealed shall be deemed to have been done or taken under the corresponding provision of this Act.

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